

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.1652	0.1653	0.0091	0.2779	0.1051
Trial Fee-Shifting	0.1620	0.1621	0.0183	0.2779	0.1051

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.1631	0.1653	0.0043	0.2865	0.0840
Trial Fee-Shifting	0.1583	0.1650	0.0058	0.2823	0.0850